

language of the instrument be clear and unambiguous, that the vesting of portions in sons who attain twenty-one or in daughters who attain twenty-one or marry is to depend on some contingency, as the event of their surviving their parents, the Court cannot contradict the written instrument (a).

3. **Where portional fund has to be created.** — A distinction must also be made between those cases where the portional fund exists or is to be raised at all events, so that the question relates only to the distribution of the fund, and those cases where the fund itself is to be called into existence upon a contingency, so that the latter contingency leavens all the portions and makes them all contingent.

Thus in *Hotchkin v. Humfrey* (b) a term of 500 years was created in trust that "*in case* the husband should *leave* one or more younger children *that should be living* at the decease of the survivor of the husband and wife," the trustees were to *raise* portions for "*such* younger children," the same to be paid to daughters at the age of eighteen or marriage, and to sons at twenty-one; and should there be no such son or daughter then the term to cease. There were four children of the marriage who attained twenty-one, but two only survived both parents. Was the portional fund to be divided between the four or given to the two who survived? Sir T. Plumer said, "If the children who died before the surviving parent are to be considered as having taken vested interests, it must follow that a vested interest was given on a contingency. Can that be? When a fund is contingent the shares to be paid out of it must be contingent. If all the children had died before the surviving parent, the fund would not have been raisable, and therefore till such parent's death it was uncertain and contingent whether it could be raised. The intention appears to me, therefore, to have been

(a) *Re Wollaston's Settlement*, 27 Beav. 642; *Jeffery v. Jeffery*, 17 Sim. 26; *Bradley v. Powell*, Cas. t. Talb. 193, but doubted by Lord Hardwicke, in *Tunstal v. Bracken*, 1 B. C. C. 124, note; *Fitzgerald v. Field*, 1 Russ. 430; *Bright v. Rowe*, 3 M. & K. 316;

Skipper v. King, 12 Beav. 29; *Whatford v. Moore*, 7 Sim. 574; *Farrer v. Barker*, 9 Hare, 737; and see *Worsley v. Granville*, 2 Ves. sen. 333.

(b) 2 Mad. 65; and see *Swallow v. Binns*, 1 K. & J. 426; *Fitzgerald v. Field*, 1 Russ. 430.